

Finsbury Square Act, 1957

5 & 6 ELIZ. 2 Ch. xl

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CHAPTER xl

An Act to authorise the provision of garaging and parking accommodation for vehicles beneath the surface of Finsbury Square in the metropolitan borough of Finsbury to make further provision for the improvement and development of the said square and for other purposes.

[31st July 1957.]

WHEREAS—

(1) The garden enclosure bounded on all sides by the roadway of Finsbury Square (hereinafter referred to as "the gardens") is an enclosure in the metropolitan borough of Finsbury (hereinafter referred to as "the borough") to which the provisions of the London Squares and Enclosures (Preservation) Act 1906 and the London Squares Preservation Act 1931 apply:

(2) By a conveyance made the twenty-first day of August one thousand nine hundred and fifty-six between the Church Commissioners for England (hereinafter referred to as "the commissioners") of the one part and the mayor aldermen and councillors of the borough (hereinafter referred to as "the Council") of the other part the gardens were conveyed to the Council in fee simple except and reserved as therein mentioned for the purposes of the Open Spaces Act 1906 and the Council covenanted that they would perform and observe certain stipulations and restrictions therein set forth:

(3) The said stipulations and restrictions include a covenant by the Council at their own expense to remove the existing air-raid shelters on the property and fill in the excavations and lay out the surface of the land as a public garden for a public open space in accordance with a scheme to be first approved by the commissioners the said works of removal filling in and laying

out to be commenced forthwith and proceeded with continuously until completed:

(4) There is a proviso to the said covenant that if the Council are unable to obtain all necessary consents for the removal of the said air-raid shelters the Council shall lay out the surface of the land as a public garden for a public open space in such manner as shall have regard to the existence of the said shelters and as shall first be approved by the commissioners:

(5) The said stipulations and restrictions include a further covenant by the Council to keep and maintain the said land in good order and condition for all time as a public garden for a public open space and not to use or permit the same to be used for any other purpose whatsoever:

(6) It would be of public and local advantage to provide garaging and parking accommodation for vehicles beneath the surface of Finsbury Square and to authorise the use and development of the gardens as in this Act provided:

(7) In order to enable such accommodation to be provided and such use and development to take place it is expedient that the covenants stipulations and restrictions hereinbefore referred to affecting the gardens should cease to have effect and that the London Squares and Enclosures (Preservation) Act 1906 and the London Squares Preservation Act 1931 should cease to apply to the gardens:

(8) It is expedient that the other provisions contained in this Act should be enacted:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

(10) In relation to the promotion of the Bill for this Act the Council have complied with the requirements of sections 151 and 152 of the London Government Act 1939:

(11) A plan showing the lands in respect of which rights may be extinguished or restrictions removed under the powers of this Act and a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were in the month of March nineteen hundred and fifty-seven deposited with the clerk of the London County Council and are hereinafter respectively referred to as the deposited plan and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Finsbury Square Act 1957. Short title.

2.—(1) In this Act unless the subject or context otherwise requires— Interpretation.

“ the borough ” means the metropolitan borough of Finsbury;

“ the commissioners ” means the Church Commissioners for England;

“ the conveyance ” means the conveyance made the twenty-first day of August one thousand nine hundred and fifty-six between the commissioners of the one part and the Council of the other part a copy of which is set forth in the schedule to this Act;

“ the Council ” means the mayor aldermen and councillors of the borough;

“ enactment ” includes this Act and any general or local Act order byelaw or regulation for the time being in force within the borough;

“ the gardens ” means the garden enclosure bounded on all sides by the roadway of the square and delineated on the deposited plan ;

“ the square ” means Finsbury Square in the borough.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

3. As from the passing of this Act—

(1) the Council shall be released discharged and freed from the covenants by them in the conveyance to perform and observe the stipulations and restrictions set out in paragraphs (2) and (3) of the Second Schedule to the conveyance and the said stipulations and restrictions shall accordingly cease to have effect; and Extinguishment of restrictions affecting gardens.

(2) the provisions of the London Squares and Enclosures (Preservation) Act 1906 and the London Squares Preservation Act 1931 shall cease to apply to the gardens.

4.—(1) Notwithstanding anything contained in any enactment or in the conveyance but subject to the provisions of this Act the Council may within the square— Provision of garaging and parking accommodation.

(a) provide equip maintain and manage garaging and parking accommodation for vehicles beneath the surface of the square with means of access thereto from the surface;

(b) in connection with the provision of such accommodation—

(i) construct and provide roads paths ramps steps lifts and hoists;

(ii) provide and maintain two petroleum filling stations cloak-rooms waiting-rooms shelters offices information bureaux and displays lavatories and conveniences and such other facilities as the Council think fit;

(iii) keep petroleum spirit subject to the provisions of the Petroleum (Consolidation) Act 1928 and any licence granted thereunder;

(c) prescribe the class or classes of vehicles which may use any such accommodation and the charges to be paid in connection with the use thereof.

(2) The Council shall not under the powers of this section—

(a) erect or permit the erection of buildings on or over more than one-eighth of the surface of the gardens ; or

(b) themselves sell petroleum fuel or lubricants;

but nothing in paragraph (b) of this subsection shall prejudice or affect the powers of any other person to or with whom the Council may grant a lease or enter into agreements under section 8 (Power to Council to lease and enter into agreements) of this Act to sell petroleum fuel or lubricants.

(3) In this section the expression “ buildings ” includes—

(a) the site of any petroleum filling station ; and

(b) any ramps constructed or provided in connection with any garaging or parking accommodation provided under this section.

Development
of gardens.

5.—(1) The Council shall lay out maintain and develop the gardens in accordance with a scheme to be agreed with the commissioners and the London County Council and such scheme shall—

(a) make provision for a public open space;

(b) make provision for the siting design and external appearance of the two petroleum filling stations and of any roads paths ramps and steps;

(c) determine whether any other buildings conveniences or facilities proposed to be provided under the last foregoing section or any other enactment should be constructed on the surface of the gardens and if so shall make provision for the siting design external appearance and number thereof:

Provided that if such scheme shall not be agreed within a period of thirty days from the date of its submission to the commissioners or the London County Council as the case may be the

same shall be determined by the Minister of Housing and Local Government.

(2) Any such scheme may provide for the removal of the memorial fountain near the south-west corner of the gardens and its re-erection elsewhere.

6.—(1) For the purposes of laying out and developing the gardens under the last foregoing section the Council may stop up so much of the pavement of the square as is shown on the deposited plan as intended to be stopped up and enclose any part of the pavement so stopped up and thereupon such part so stopped up and enclosed shall be added to and form part of the gardens and all rights of way over or along the same shall be extinguished.

Extinguish-
ment and
creation of
rights of way.

(2) Any part of the gardens laid into or appropriated as part of the footway of the square shall form part of that footway and shall be maintained and repaired in all respects as the rest of that footway is for the time being by law maintained and repaired.

7.—(1) The provisions of section 49 of the Housing Act 1936 (which relates to the removal or alteration of apparatus of statutory undertakers) shall apply in respect of—

Application
of section 49
of Housing
Act 1936.

(a) the gardens;

(b) the streets adjoining the gardens; and

(c) so much of the pavement of the square as is stopped up under the provisions of this Act;

as if for references to Part III of that Act there were references to this Act and as if for references to land purchased by a local authority under Part III of that Act there were references to the gardens and as if the expression "apparatus" included trolley vehicle apparatus as defined in section 4 of the London Passenger Transport Act 1936.

(2) Except as provided by this section nothing in this Act shall authorise the Council to interfere with any trolley vehicle apparatus.

8.—(1) Notwithstanding anything contained in any enactment or in the conveyance but subject to the provisions of this Act the Council may upon such terms and conditions and subject to such restrictions and for such period as they think fit lease the gardens and any other part of the square vested in them to any person and may enter into and carry into effect agreements with any such person with respect to the provision equipment maintenance and management of garaging and parking accommodation for vehicles under section 4 (Provision of garaging and parking accommodation) of this Act and the laying out and development under section 5 (Development of gardens) of this Act of the

Power to
Council to
lease and
enter into
agreements.

gardens and any other matters incidental thereto or consequential thereon.

(2) Any such lease or agreement may provide (inter alia) for the exercise by such person or by the Council and such person jointly of any of the powers of the Council under the said sections 4 and 5 of this Act.

For protection
of British
Transport
Commission.

9. The following provisions for the protection of the British Transport Commission (in this section referred to as "the commission") shall unless otherwise agreed in writing between the commission and the Council apply and have effect:—

(1) In this section—

"the authorised works" means any works constructed by the Council under section 4 (Provision of garaging and parking accommodation) of this Act which may be situate within the distance of fifty feet from any part of the railway tunnels of the commission;

"the engineer" means an engineer to be appointed by the commission;

"the commission" means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive;

(2) The Council shall not construct the authorised works or alter or renew the same otherwise than in accordance with plans sections and specifications to be previously submitted to and approved in writing by the engineer or in case of differences between the Council and the engineer settled by arbitration:

Provided that if the engineer shall not within twenty-eight days after the submission to him of any such plans sections and specifications signify his approval or disapproval thereof he shall be deemed to have approved the same.

(3) The authorised works shall be executed by the Council under the supervision (if given) and to the reasonable satisfaction of the engineer and when commenced shall be completed with all reasonable dispatch.

(4) If in the opinion of the engineer it shall be necessary either during the execution of the authorised works or within twelve months after the completion thereof that owing to the construction of the authorised works any part of any of their railways shall be altered reconstructed or strengthened the commission may after reasonable notice to the Council carry out such works as may be reasonably requisite in that behalf and the costs and expenses reasonably incurred by the commission in connection therewith shall be repaid by the Council to the commission.

(5) The commission shall at all times afford reasonable facilities to the Council for access to any works carried out by the commission under this section during their construction and shall supply the Council with all such information as they may reasonably require with regard to such works or the method of construction thereof.

(6) The Council shall not in constructing the authorised works in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the railways of the commission or the conduct of any traffic thereon and if at any time or times hereafter the free uninterrupted and safe user of such railways or the conduct of any traffic thereon shall be obstructed hindered or interfered with contrary to this enactment the Council shall pay to the commission all reasonable costs and expenses to which the commission may be put as well as compensation for the loss sustained by them by reason of any such obstruction hindrance or interference.

(7) The Council shall before commencing the construction of the authorised works give (except in case of emergency) fourteen days' previous notice in writing to the engineer of the intended works and shall bear and pay to the commission the reasonable cost of the employment by them of a sufficient number of inspectors or watchmen to be appointed by them for watching the railways of the commission with reference to and during the execution of the said works and for preventing as far as may be reasonably practicable all interference obstruction danger or accident which may arise from any of the operations of the Council or from any acts or defaults of their contractors or of any person or persons in their employ with reference thereto.

(8) The Council shall be responsible for and make good to the commission all reasonable costs and expenses and all damages and losses which may be occasioned to the commission by reason of the construction of the authorised works or the failure thereof (except where such costs losses damages and expenses arise from the neglect or default of the commission their servants or agents) or of any act or omission of the Council or of their contractors and the Council shall effectually indemnify and hold harmless the commission from all claims and demands upon or against them by reason of such construction failure act or omission and the fact that any work or thing has been executed or done in accordance with the foregoing provisions of this section shall not excuse the Council from any liability under this paragraph (if it was done without negligence on the part of the commission or their contractors agents workmen or servants):

Provided that the commission shall give to the Council reasonable notice of any such claim or demand and that no settlement or compromise thereof shall be made except with the consent of the Council who shall (if they so elect) have the sole conduct of any

settlement or compromise or of any proceedings necessary to resist the claim or demand.

(9) Any additional expense which the commission may reasonably incur in maintaining renewing widening altering or reconstructing their railways under powers in existence at the passing of this Act by reason of the existence of the authorised works shall be paid by the Council.

(10) Any difference arising between the Council and the commission or the engineer under this section (other than a difference as to the meaning thereof which does not arise in the course of the arbitration) shall be referred to and settled by a single arbitrator to be agreed between the parties or failing agreement to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Local
inquiries.

10.—(1) The Minister of Housing and Local Government may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 189 of the London Government Act 1939 shall apply in relation to any such inquiry.

Powers of Act
to be
cumulative.

11. All powers and duties conferred or imposed by this Act shall be deemed to be in addition to and not in derogation of any other powers and duties conferred or imposed by Act of Parliament law or custom and subject to any repeal effected by or other express provision of this Act all such other powers and duties may be exercised and shall be performed in the same manner as if this Act had not been passed.

Saving for
town and
country
planning.

12. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for
London
Building Acts.

13. Nothing in this Act shall authorise the erection of any building or structure or the execution of any works in contravention of any requirements or restrictions imposed by or under the London Building Acts 1930 to 1939 and any byelaws for the time being in force thereunder.

Costs of Act.

14. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council.

SCHEDULE

THIS CONVEYANCE made the twenty-first day of August One thousand nine hundred and fifty-six BETWEEN THE CHURCH COMMISSIONERS FOR ENGLAND (hereinafter called "the Commissioners") of the one part and THE MAYOR ALDERMEN AND COUNCILLORS OF THE METROPOLITAN BOROUGH OF FINSBURY of the Town Hall Rosebery Avenue in the County of London (hereinafter called "the Purchasers") of the other part

WHEREAS by virtue of the Acts of Parliament relating to the Commissioners the Commissioners are seised of or otherwise well entitled to the property comprised in the First Schedule hereunder written and intended to be hereby conveyed for an estate in fee simple free from incumbrances and are authorised to make the sale and conveyance hereinafter expressed to be made by them

AND WHEREAS the Commissioners have contracted with the Purchasers for the sale to them of the said property for the purposes of the Open Spaces Act 1906 at the price of Fifty pounds (£50) subject as and in manner hereinafter appearing NOW THIS DEED WITNESSETH that in pursuance of the said Agreement and in consideration of the sum of Fifty pounds (£50) paid by the Purchasers before the execution of these presents into the Bank of England to the credit of the Commissioners as appointed by them in that behalf the payment of which said sum is hereby acknowledged THEY the Commissioners by virtue and in exercise of all powers and authorities in anywise enabling them in this behalf hereby convey unto the Purchasers ALL AND SINGULAR the property situate in the Parish of Finsbury in the County of London described in the First Schedule hereto and EXCEPT AND RESERVED unto the Commissioners (a) full and free right and liberty without obtaining the consent of or making any compensation to the Purchasers or other the owner or owners occupier or occupiers for the time being of the said property to deal in any manner whatsoever with any of the land belonging to the Commissioners adjoining opposite or near to the said property and to erect and maintain or suffer to be erected or maintained on such adjoining opposite or neighbouring lands and premises any buildings whatsoever whether such buildings shall or shall not affect or diminish the light or air which may now or at any time hereafter be enjoyed for or in respect of the said property or any building for the time being thereon (b) the free flow of water and soil through any drains and watercourses now existing in the said property or substituted therefor by the Purchasers and all such rights of way and such rights of user of air and light and the passage thereof as the Commissioners their Lessees or tenants now have or enjoy in through over and upon the said property or any part thereof to for or in respect of any adjoining property TO HOLD the same (except as aforesaid) Unto the Purchasers in fee simple for the purposes of the Open Spaces Act 1906 but subject to any unredeemed Land Tax and Redemption Annuity and to all other (if any) duties payments and obligations Ecclesiastical or Civil charged upon or payable out of the said property and to all rights of way light and water and other easements (if any) affecting the same AND the Commissioners hereby covenant with the Purchasers that they have not done or knowingly suffered anything to be done by means whereof the said property or any part thereof is or may be

incumbered in title estate or otherwise howsoever AND the Purchasers to the intent that the covenant hereinafter contained shall bind the said property into whosoever hands the same may come for the benefit of adjoining and neighbouring lands belonging to the Commissioners or any part or parts thereof hereby for themselves and their successors in title covenant with the Commissioners that they will perform and observe the stipulations and restrictions set out in the Second Schedule hereto AND IT IS HEREBY CERTIFIED that the transaction hereby effected does not form part of a larger transaction or of a series of transactions in respect of which the amount or value or the aggregate amount or value of the consideration exceeds Five hundred pounds

IN WITNESS whereof the Commissioners and the Purchasers have caused their respective Common Seals to be hereunto affixed the day and year first above written

THE FIRST SCHEDULE above referred to :—

All that piece or parcel of land situate in the Parish of Finsbury in the County of London and being the garden enclosure bounded on all sides by the roadway of Finsbury Square and which for the purposes of identification only and not of limitation of conveyance is shown and coloured pink on the plan annexed hereto

THE SECOND SCHEDULE above referred to :—

- (1) That the Purchasers shall not be entitled to the benefit of any covenant or reservation in any Conveyances or Leases made or granted by the Commissioners of lands and premises adjoining opposite or near to the said property enabling the Commissioners to deal as they may think fit with adjoining or neighbouring lands without regard to the light and air enjoyed by the owner lessee tenant or occupier of the land comprised in the said Conveyances or Leases nor the benefit of any restrictive covenant stipulation or condition or any other covenant reservation right condition or obligation contained in any Conveyances or Leases made or granted by the Commissioners of the said lands and premises adjoining opposite or near to the said property or elsewhere in the said Parish of Finsbury
- (2) The Purchasers shall at their own expense remove the existing air-raid shelters on the property fill in the excavations and lay out the surface of the land as a public garden for a public open space in accordance with a scheme to be first approved by the Commissioners the said works of removal filling in and laying out to be commenced forthwith and proceeded with continuously until completed PROVIDED however that if the Purchasers are unable to obtain all necessary consents for the removal of the said air-raid shelters the Purchasers shall lay out the surface of the land as a public garden for a public open space in such manner as shall have regard to the existence of the said shelters and as shall first be approved by the Commissioners
- (3) The Purchasers shall keep and maintain the said land in good order and condition for all time as a public garden for a public open space and shall not use or permit the same to be used for any other purpose whatsoever

- (4) The Purchasers shall not hold nor permit to be held upon the said land any fair or meeting of any kind nor hold or allow any musical performance thereon which might be or tend to be a nuisance or annoyance to the Commissioners or their Lessees or Occupiers of their surrounding properties

The Common Seal of THE CHURCH
COMMISSIONERS was hereunto
affixed in the presence of—

O. H. JOHNSON

Assistant Secretary

The Common Seal of THE MAYOR
ALDERMEN AND COUNCILLORS OF
THE METROPOLITAN BOROUGH OF
FINSBURY was hereunto affixed in
the presence of—

M. CLIFFE

Mayor

HENRY A. DAVEY

Town Clerk

Table of Statutes referred to in this Act

Short title	Session and chapter
Open Spaces Act 1906	6 Edw. 7 c. 25.
London Squares and Enclosures (Preservation) Act 1906	6 Edw. 7 c. clxxxvii.
Petroleum (Consolidation) Act 1928	18 & 19 Geo. 5 c. 32.
London Squares Preservation Act 1931	21 & 22 Geo. 5 c. xciii.
Housing Act 1936	26 Geo. 5 & 1 Edw. 8 c. 51.
London Passenger Transport Act 1936	26 Geo. 5 & 1 Edw. 8 c. cxxxi.
London Government Act 1939	2 & 3 Geo. 6 c. 40.
Transport Act 1947	10 & 11 Geo. 6 c. 49.
Town and Country Planning Act 1947	10 & 11 Geo. 6 c. 51.

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